# Tasleem vs State Of U.P. on 27 July, 2022

## Author: Vivek Kumar Singh

## Bench: Vivek Kumar Singh

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 69

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 6954 of 2021

Applicant :- Tasleem

Opposite Party :- State of U.P.

Counsel for Applicant :- Sudhir Mehrotra

Counsel for Opposite Party :- G.A.

Hon'ble Vivek Kumar Singh,J.
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Heard Sri Sudhir Mehrotra, learned counsel for the applicant and Sri Sanjay Singh, learned A.G.A.-I appearing for the State.

It has been contended by the learned counsel for the applicant that the applicant has been falsely implicated in the present case due to ulterior motive. It is next contended that the applicant has not committed the crime in question and there is no direct or indirect evidence against the applicant. It is further submitted that the Prosecution Witness Nos.1 and 2 have not supported the prosecution story and have turned hostile, reference in this regard is made to annexure S.A.-1 and 2 to the supplementary affidavit dated 31.8.2021, which is on record. Several other submissions in order to demonstrate the falsity of the allegations made against the applicant have also been placed forth before the Court. The circumstances which, according to the counsel, led to the false implication of the accused has also been touched upon at length. It has been assured on behalf of the applicant that he is ready to cooperate with the process of law and shall faithfully make himself available before the

court whenever required. It has also been submitted that the applicant is languishing in jail since 17.7.2020. It has been pointed out that the applicant has no criminal history.

Learned counsel for the complainant as well as learned A.G.A. have opposed the prayer for bail.

Having heard the submissions of learned counsel of both sides, nature of accusation and the severity of punishment in case of conviction and the nature of supporting evidence, prima facie satisfaction of the Court in support of the charge, reformative theory of punishment, and larger mandate of the Article 21 of the Constitution of India, the dictum of Apex Court in the case of Dataram Singh v. State of U.P. and another, reported in (2018) 2 SCC 22 and without expressing any opinion on the merit of the case, I find it to be a case of bail.

Let the applicant Tasleem involved in Case Crime No.690 of 2020, under Section 342, 354, 452, 375, 375, 376-AB, 506 I.P.C. & Section 5(m)/6 of the Protection of Children From Sexual Offences Act, Police Station Khurja City, District Bulandshahar be released on bail on his furnishing a personal bond with two sureties each in the like amount to the satisfaction of the court concerned with the following conditions.

(i) The applicant shall file an undertaking to the effect that he shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in court. In case of default of this condition, it shall be open for the trial court to treat it as abuse of liberty of bail and pass orders in accordance with law.

(ii) The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. In case of his absence, without sufficient cause, the trial court may proceed against him under Section 229-A of the Indian Penal Code.

(iii) In case, the applicant misuses the liberty of bail during trial and in order to secure his presence proclamation under Section 82 Cr.P.C. is issued and the applicant fails to appear before the court on the date fixed in such proclamation, then, the trial court shall initiate proceedings against him, in accordance with law, under Section 174-A of the Indian Penal Code.

(iv) The applicant shall remain present, in person, before the trial court on the dates fixed for (i) opening of the case, (ii) framing of charge and (iii) recording of statement under Section 313 Cr.P.C. If in the opinion of the trial court absence of the applicant is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of bail and proceed against him in accordance with law.

In case of breach of any of the above conditions, the trial court will be at liberty to cancel the bail.

It is clarified that the observations, if any, made in this order are strictly confined to the disposal of this bail application and must not be construed to have any reflection on the ultimate merits of the case.

The trial Court is directed to expedite the trial of the present case and conclude the same as expeditiously as possible, keeping in view the law laid down by the Apex Court in the case of Alakh Alok Srivastava Vs. Union of India and another reported in AIR 2018 (SC) 2440, if there is no legal impediment.

Order Date :- 27.7.2022 Dev/-